LAWS OF NEPAL · INTEGRITY & ANTI-CORRUPTION

Prevention of Corruption Act, 2059

Bribery Offenses, Revenue Leakage, Unexplained Wealth, Property Disclosure & CIAA

Public Integrity & Administrative Law Series

Act 2059 BS · PSC Core Statute · 4 Pages

CHAPTERS 1–2 · CORRUPTION OFFENSES & SANCTIONS

Statutory Scope & Categorized Offenses

Defines accountability and penal sanctions for public servants and other persons misusing public office, state revenue, public procurement, or official records.

- Graft / Bribery (Section 3): Accepting or agreeing to accept gratification in cash or kind other than lawful remuneration carries graduated imprisonment and a fine equal to the bribe amount plus confiscation.
- Revenue Leakage & Public Loss (Sections 7 & 17): Collusive under-assessment of tax/customs or deliberate/reckless damage to public property mandates recovery of the loss (Bigo) plus equivalent fine and imprisonment.
- Fake Credentials & Tampering (Sections 12 & 16): Submitting forged academic/citizenship certificates to enter or gain promotion in public service, or falsifying official records/audit documents, is a punishable corruption offense.

SECTIONS 20 & 50 · ILLICIT ENRICHMENT & DISCLOSURE

Property Declaration & Unexplained Wealth

- Illicit Enrichment / Disproportionate Assets (Section 20): If a public servant maintains a standard of living or holds assets incompatible with known lawful income sources and cannot prove legitimate acquisition, the unexplained wealth is confiscated with fine and imprisonment.
- Mandatory 60-Day Property Statement (Section 50): Every person joining public office must submit a statement of assets in their or family members' names within 60 days of appointment, and annually within 60 days of the end of each fiscal year.
- Failure to Submit Property Statement: Triggers a Rs. 5,000 administrative fine and initiates scrutiny into suspected undisclosed assets.

CONSTITUTIONAL LINKAGE · ARTICLE 238 & 239

CIAA Mandate, Preventive Vigilance & Ethics

- Commission for the Investigation of Abuse of Authority (CIAA): Five-member constitutional body (Chief Commissioner + 4 Commissioners, 6-year term) investigating corruption by persons holding public office and filing cases before the Special Court.
- Three-Pronged Anti-Corruption Strategy: Punitive prosecution, preventive system-improvement directives to ministries, and promotional civic integrity awareness.
- National Vigilance Centre (Rastriya Satarkata Kendra — Section 37–38): Operates directly under the Prime Minister to conduct surprise technical audits, citizen charter checks, and property-declaration monitoring.